

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1114

AN ACT to amend the Indiana Code concerning insurance.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 5-10-8-18.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 18.5. (a) This section applies only to a:**

(1) prescription drug that is:

(A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(B) supported by peer reviewed, evidence based literature;
and

(C) approved by the federal Food and Drug Administration; and

(2) state employee health plan that is established, entered into, amended, or renewed after June 30, 2026.

(b) As used in this section, "advanced, metastatic cancer" means cancer that has spread from the primary or original site of the cancer to nearby tissues, lymph nodes, or other areas or parts of the body.

(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the covered

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individual if left untreated.

(d) As used in this section, "covered individual" means an individual entitled to coverage under a state employee health plan.

(e) As used in this section, "state employee health plan" refers to the following that provide coverage for prescription drugs:

(1) A self-insurance program established under section 7(b) of this chapter.

(2) A contract with a prepaid health care delivery plan that is entered into or renewed under section 7(c) of this chapter.

(f) A state employee health plan that provides coverage for advanced, metastatic cancer and associated conditions may not require that, before the state employee health plan provides coverage for a prescription drug, the covered individual:

(1) fail to successfully respond to a different prescription drug; or

(2) prove a history of failure of a different prescription drug.

SECTION 2. IC 27-8-5-32 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32. (a) This section applies only to a:

(1) prescription drug that is:

(A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(B) supported by peer reviewed, evidence based literature; and

(C) approved by the federal Food and Drug Administration; and

(2) policy of accident and sickness insurance that is issued, amended, or renewed after June 30, 2026.

(b) As used in this section, "advanced, metastatic cancer" means cancer that has spread from the primary or original site of the cancer to nearby tissues, lymph nodes, or other areas or parts of the body.

(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the insured if left untreated.

(d) As used in this section, "insured" means an individual who is entitled to coverage under a policy of accident and sickness insurance.

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(e) As used in this section, "policy of accident and sickness insurance" means a policy of accident and sickness insurance that provides coverage for prescription drugs.

(f) A policy of accident and sickness insurance that provides coverage for advanced, metastatic cancer and associated conditions may not require that, before the policy of accident and sickness insurance provides coverage for a prescription drug, the insured:

- (1) fail to successfully respond to a different prescription drug; or
- (2) prove a history of failure of a different prescription drug.

SECTION 3. IC 27-13-7-29.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 29.5. (a) This section applies only to:**

- (1) a prescription drug that is:
 - (A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;
 - (B) supported by peer reviewed, evidence based literature; and
 - (C) approved by the federal Food and Drug Administration; and
- (2) an individual contract or a group contract that is entered into, amended, or renewed after June 30, 2026.

(b) As used in this section, "advanced, metastatic cancer" means cancer that has spread from the primary or original site of the cancer to nearby tissues, lymph nodes, or other areas or parts of the body.

(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the enrollee if left untreated.

(d) As used in this section, "group contract" refers to a group contract that provides coverage for prescription drugs.

(e) As used in this section, "health maintenance organization" refers to a health maintenance organization that provides coverage for prescription drugs. The term includes the following:

- (1) A limited service health maintenance organization.
- (2) A person that administers prescription drug benefits on behalf of a health maintenance organization or a limited



service health maintenance organization.

(f) As used in this section, "individual contract" refers to an individual contract that provides coverage for prescription drugs.

(g) A health maintenance organization that provides coverage under an individual contract or a group contract for advanced, metastatic cancer and associated conditions may not require that, before the health maintenance organization provides coverage for a prescription drug, the enrollee:

- (1) fail to successfully respond to a different prescription drug; or
- (2) prove a history of failure of a different prescription drug.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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